VOLGAS (PRIVATE) LIMITED
versus
TANK UP PETROLEUM (PRIVATE) LIMITED
and
THE MESSENGER OF COURT NO.

HIGH COURT OF ZIMBABWE
MAWADZE DJP & WAMAMBO J
HARARE; 05 March & 19 March 2026

Civil Appeal

NG Nyatsango for the appellant
F Nyamayaro for the first respondent
No appearance for the second respondent

BACKGROUND FACTS

Following a lease agreement entered into in 2023 for a gas retail premises, the first respondent initiated legal proceedings in May 2025 seeking the appellant's eviction and the recovery of $4,550.00 in rental arrears. While the first respondent successfully obtained and executed an ex parte rent attachment order against the appellant's movable property in early August 2025, they subsequently issued an instruction to the second respondent to remove said property from the appellant's possession. In response, the appellant sought a court order to compel the restoration of the property and to interdict further removals pending the finalization of the main suit, case HCD 1178/25.

The court *a quo* held that the existing order was clear, stating:

> "...the messenger of court Harare be and is hereby authorized to seize and arrest so much of the respondent's movable property at Mabvuku Harare as shall be sufficient to satisfy the sum of US$4,450 for rent arrears and costs."

The court said that the order clearly directed the messenger of court to seize and arrest the property. It said that granting the appellant's order would mean reviewing an order that was made by another magistrate and it did not have the powers to do so. Consequently, it ruled that

the only recourse remaining for the Applicant was to apply for the setting aside of that rent attachment. As a result, the application was dismissed.

The appellant raised the following grounds on appeal:

1. The court *a quo* erred at law by disregarding a binding judgment of the High Court referred to by the Appellant, which held that a rent attachment order does not automatically lead to execution, nor does it give the recipient of the order the right to deprive the tenant of possession of the attached property.

2. The court *a quo* erred on the facts, an error so grossly unreasonable that any other tribunal in the shoes of the court *a quo* would not have found the same, when it found that the Appellant was seeking to set aside the rent attachment order when the record shows that the Appellant only sought to retain possession of the attached property and not to overturn the rent attachment order.

3. The court *a quo* erred at law when it interpreted the rent attachment order as allowing the removal of the property by the second Respondent, whereas at law, possession must remain with the tenant pending the determination of the rent dispute.

And the following relief:

1. That the appeal succeeds with costs on a legal practitioner client scale.

2. That the judgment of the court *a quo* be set aside and substituted with the following:

1. The Application for an interdict and order to compel be and is hereby granted with costs.

2. The first Respondent be and is hereby ordered to return into the possession of the Applicant the moveable property being 3 X 200 kgs Gas Cylinders, 6 X 48 kgs Gas Cylinders, 1 X Industrial Scale, 1 X Pump, 1 X Solar System, 4 X Solar Panels, 1 X invertor, 1 X Lithium Battery 12 V, 1 X Distribution box, 1 X Steel Container currently within its possession

3. The first and second Respondents are hereby interdicted from the removal or disposal of the Applicant's movable property listed in paragraph 2 pending the finalisation of case number HRE-CCD 1178/25 and or any appeal/s that arise thereof.

4. The second Respondent be and is hereby ordered to pay the costs for the restoration of the property listed in paragraph 2 into the possession of the Applicant.'

The appellant addressed grounds 1 and 2 jointly. The appellant submitted that in the court *a quo*, the appellant contended that the rent attachment order obtained by the respondent merely authorized the arrest of the appellant's goods and did not permit their removal from the leased premises, as the respondent had unlawfully done. The appellant submitted that such removal was irregular, exceeded the scope of the rent attachment order, and was therefore unlawful. In support of this argument, the appellant relied on the judgment of this Honourable Court in *Life Brand Agric Services (Pvt) Ltd* v *Petker* ZWHHC 268/2021. It was held that;

> "The attachment order that the court issues under s 34(1) of the Act does not automatically lead to execution. It is to restore or preserve so much of the tenant's property at the rented premises as the value of which would be sufficient to satisfy any judgment of the court for the outstanding rent and costs. Such an order seems similar to an anti-dissipation interdict, which is a temporary interdict intended to preserve an asset by prohibiting its disposal pending the determination of a dispute. The object is to give effect to the order of court that may be eventually granted to ensure that there is an asset to levy attachment on in the event of execution: see *Shabtai v Bar & Ors* HH 707-14."

The appellant emphasised that the object of the rent attachment order obtained by the first respondent was merely to confer upon the first respondent a hypothec over the appellant's property. Its effect was to prohibit the appellant from disposing of such property pending the determination of the dispute between the parties. The appellant submitted that the court, in *Life Brand Agric Services (Pvt) Ltd* v *Petker* (supra) further articulated the principle in the following terms:

> "The attachment under s 34(1) of the Act is to confirm and secure the landlord's hypothec for rent that is referred to in s 38 of the Act. Under the common law, a landlord has a tacit hypothec for the rent owing by the tenant. The hypothec is over all the movable property on the rented premises, and which belongs to the tenant: Buckle & Jones, ibid, at p 55. Under s 38 of the Act, the hypothec is over the furniture and other effects of the tenant at the rented premises. In simple terms, a landlord's hypothec for rent is an encumbrance on the tenant's property as security for rent. The property remains in the possession and use of the tenant, but he or she may not remove it from the rented premises."

In reply, the first respondent submitted that the nature of the application made by the Appellants was not in tandem with the dictates of rent attachments. The first respondent said that if the appellant was aggrieved by the rent attachment order, the appellant ought to have proceeded in terms of Section 34 (2) of the Magistrates Court Act, which states as follows:-

"Any person affected by the order referred to in subsection 1 may apply to have it set aside".

The first respondent also said the court *a quo* did err in determining that interpreting the import of the rent attachment order meant that the first respondent was allowed to remove the appellant's property. He said this was because the word “seize” is synonymous with “to remove.”

The court takes note that the Magistrates' Court Act [*Chapter 7:10*] does not define what to seize. However, it is clear that to seize and arrest, as was defined by this court in *Life Brand Agric Services (Pvt) Ltd* v *Petker* (supra), does not mean that the party in whose favour the rent attachment order would have been granted is to remove the property subject to the order. The case clearly illustrates that the purpose of an attachment order is to preserve so much of the tenant’s property at the rented premises as the value of which would be sufficient to satisfy any judgment of the court for the outstanding rent and costs. The property remains in the possession and use of the tenant.

The court *a quo* made the same mistake as the first respondent made by assuming that the rent attachment order allowed the first respondent to remove the property.

Consequently, the court makes the following order:

1. The appeal be and hereby succeeds.

2. That the judgment of the court a quo be set aside and substituted with the following:

“1. The Application for an interdict and order to compel be and is hereby granted.

2. The first Respondent be and is hereby ordered to return into the possession of the Applicant the moveable property being 3 X 200 kgs Gas Cylinders, 6 X 48 kgs Gas Cylinders, 1 X Industrial Scale, 1 X Pump, 1 X Solar System, 4 X Solar Panels, 1 X invertor, 1 X Lithium Battery 12 V, 1 X Distribution box, 1 X Steel Container currently within its possession

3. The first and second Respondents are hereby interdicted from the removal or disposal of the Applicant's movable property listed in paragraph 2 pending the finalisation of case number HRE-CCD 1178/25.

4. The second Respondent be and is hereby ordered to pay the costs for the restoration of the property listed in paragraph 2 into the possession of the Applicant."

5. The first respondent to pay costs.

WAMAMBO J……

MAWADZE DJP ……agrees

Coghlan, Welsh and Guest Legal Practitioners, the appellants legal practitioners
Farai Nyamayaro Law Chambers, the first respondent's legal practitioners